



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1418: corporation commission; small modular reactors

CARBONE FLOOR AMENDMENT

1. Clarifies that all prescribed criteria must be met prior to construction of a small modular reactor (SMR) for the county to be prohibited from regulating the use or occupation of land.
2. Replaces the entity that a SMR can be colocated with from a *large industrial energy user* to an *extra high load factor customer*.
3. Expands the requirements a SMR must meet to qualify for the exemption from county regulations.
4. Defines *small modular reactor*.
5. Removes rulemaking authority of the Corporation Commission as it relates to implementing this legislation.
6. Makes conforming changes.

ADDITIONAL COW
CARBONE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1418
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-812, Arizona Revised Statutes, is amended to
3 read:

4 11-812. Restriction on regulation; exceptions; aggregate
5 mining regulation; definitions

6 A. ~~Nothing contained in~~ Any ordinance authorized by this chapter
7 ~~shall~~ MAY NOT:

8 1. Affect existing uses of property or the right to its continued
9 use or the reasonable repair or alteration of the property for the purpose
10 for which used at the time the ordinance affecting the property takes
11 effect.

12 2. Prevent, restrict or otherwise regulate the use or occupation of
13 land or improvements for railroad, mining, metallurgical, grazing or
14 general agricultural purposes, if the tract concerned is five or more
15 contiguous commercial acres. For the purposes of this paragraph:

16 (a) "General agricultural purposes" includes agritourism as defined
17 in section 3-111, but does not include any of the following:

18 (i) Food establishments THAT ARE under the authority of the
19 department of health services pursuant to section 36-136, subsection I AND
20 that are associated with an agritourism business.

21 (ii) Rodeo events that are open to the general public and that sell
22 tickets for admission. For the purposes of this item, rodeo events do not
23 include generally accepted agricultural practices associated with
24 livestock and equine operations.

25 (iii) The cultivation of cannabis as defined in section 13-3401 or
26 marijuana as defined in section 13-3401 or 36-2801.

27 (b) "Mining" has the same meaning prescribed in section 27-301.

1 3. Prevent, restrict or otherwise regulate the use or occupation of
2 land or improvements for agricultural composting, if the tract is five or
3 more contiguous commercial acres. An agricultural composting operation
4 shall notify in writing the board of supervisors and the nearest fire
5 department of the location of the composting operation. If the nearest
6 fire department is located in a city, town or fire district where the
7 agricultural composting is not located, the agricultural composting
8 operation shall also notify in writing the fire district in which the
9 operation is located. Agricultural composting is subject to sections
10 3-112 and 49-141. For the purposes of this paragraph, "agricultural
11 composting" has the same meaning prescribed in section 9-462.01,
12 subsection G.

13 4. Prevent, restrict or otherwise regulate the otherwise lawful
14 discharge of a firearm or air gun or use of archery equipment on a private
15 lot or parcel of land that is not open to the public on a commercial or
16 membership basis.

17 5. EXCEPT IN A COUNTY WITH FIVE HUNDRED THOUSAND PERSONS OR MORE,
18 PREVENT, RESTRICT OR OTHERWISE REGULATE THE USE OR OCCUPATION OF LAND OR
19 IMPROVEMENTS FOR THE CONSTRUCTION AND OPERATION OF A SMALL MODULAR
20 REACTOR, IF [ALL OF THE FOLLOWING HAVE BEEN MET BEFORE CONSTRUCTION OF THE
21 SMALL MODULAR REACTOR:

22 (a)] THE SMALL MODULAR REACTOR IS COLOCATED WITH [A LARGE
23 INDUSTRIAL ENERGY USER] [AN EXTRA HIGH LOAD FACTOR CUSTOMER AS DEFINED BY
24 THE CORPORATION COMMISSION AND] THAT RECEIVED ALL APPLICABLE ZONING
25 ENTITLEMENTS. [FOR THE PURPOSES OF THIS PARAGRAPH, "COLOCATED WITH",
26 "LARGE INDUSTRIAL ENERGY USER" AND "SMALL MODULAR REACTOR" HAVE THE SAME
27 MEANINGS ADOPTED BY THE CORPORATION COMMISSION PURSUANT TO SECTION
28 40-360.14.]

29 [(b) THE SMALL MODULAR REACTOR RECEIVED A DESIGN CERTIFICATION AS
30 PRESCRIBED IN 10 CODE OF FEDERAL REGULATIONS PART 52 FROM A FEDERAL AGENCY
31 OR COMMISSION THAT REGULATES PUBLIC HEALTH AND SAFETY RELATING TO THE
32 OPERATION OF NUCLEAR REACTORS.

33 (c) THE SMALL MODULAR REACTOR IS NOT EITHER OF THE FOLLOWING:

34 (i) LOCATED WITHIN A COUNTY ISLAND AS DEFINED IN SECTION 11-251.12.

35 (ii) LOCATED WITHIN THREE MILES OF THE BOUNDARIES OF A MUNICIPALITY
36 OR THE MUNICIPAL PLANNING AREA OF THE MUNICIPALITY, AS DESIGNED IN THE
37 LAND USE MAP OF THE MUNICIPALITY'S GENERAL PLAN. THIS ITEM APPLIES
38 REGARDLESS OF WHETHER THE MUNICIPALITY HAS EXERCISED EXTRATERRITORIAL
39 JURISDICTION PURSUANT TO SECTION 9-462.07.

40 (d) THE OWNER OR OPERATOR OF THE SMALL MODULAR REACTOR HAS
41 SUBMITTED TO THE BOARD OF SUPERVISORS OF THE COUNTY IN WHICH THE PROPOSED
42 SMALL MODULAR REACTOR IS LOCATED BOTH OF THE FOLLOWING:

43 (i) THE DESIGN CERTIFICATION FOR THE SMALL MODULAR REACTOR AS
44 PRESCRIBED IN SUBDIVISION (b) OF THIS PARAGRAPH.

1 (ii) A MAP THAT SHOWS THAT THE LOCATION OF THE SMALL MODULAR
2 REACTOR SATISFIES THE REQUIREMENTS OF SUBDIVISION (c) OF THIS PARAGRAPH.]

3 B. A nonconforming business use within a district may expand if the
4 expansion does not exceed one hundred ~~per cent~~ PERCENT of the area of the
5 original business.

6 C. For the purposes of subsection A, paragraph 2 of this section,
7 mining does not include aggregate mining operations in an aggregate mining
8 operations zoning district established pursuant to this section. The
9 board of supervisors of any county with a population of more than two
10 million persons shall designate and establish the boundaries of an
11 aggregate mining operations zoning district on the petition of at least
12 one hundred persons who reside within one-half mile of an existing
13 aggregate mining operation. In addition, the board of supervisors of any
14 county may establish, in its discretion and on the board's initiative, one
15 or more aggregate mining operations zoning districts. Aggregate mining
16 operations zoning districts may only be located in areas that are
17 inventoried and mapped as areas of known reserves or in areas with
18 existing aggregate mining operations. Subject to subsections E and F of
19 this section, a county and the state mine inspector may jointly adopt, as
20 internal administrative regulations, reasonable aggregate mining
21 operations zoning district standards limited to permitted uses, procedures
22 for approval of property development plans and site development standards
23 for dust control, height regulations, setbacks, days and hours of
24 operation, off-street parking, screening, noise, vibration and air
25 pollution control, signs, roadway access lanes, arterial highway
26 protection and property reclamation for which aggregate mining operations
27 are not otherwise subject to federal, state or local regulation or a
28 governmental contractual obligation. Regulations ~~THAT ARE~~ jointly adopted
29 pursuant to this subsection by the county and the state mine inspector
30 shall not prohibit the activities included in the definition of mine
31 pursuant to section 27-301, paragraph 8 or duplicate, conflict with or be
32 more stringent than applicable federal, state or local laws.

33 D. The board of supervisors of any county that establishes an
34 aggregate mining operations zoning district shall appoint an aggregate
35 mining operations recommendation committee for the district. The
36 committee consists of not more than seven operators, or representatives of
37 operators, of active aggregate mining operations in any district within
38 the county and an equal number of private citizens, who are not operators,
39 who are not employed by operators and who do not represent operators,
40 residing within three miles of the boundaries of aggregate mining
41 operations or a proposed aggregate mining operation in the district for
42 which the committee is established. The initial members appointed to the
43 committee shall be deemed the primary members, and the board of
44 supervisors shall appoint not more than five alternate members who
45 represent operators and shall appoint not more than five alternate members
46 who are private citizens. Alternate members may serve at meetings of the
47 committee when a primary member is unable to attend. An aggregate mining

1 operator may serve on more than one committee in the same county. The
2 board of supervisors shall determine the length of terms of members of the
3 committee and shall stagger the initial appointments so that not all
4 members' terms expire at the same time. Members of the committee who no
5 longer qualify for membership as provided by this subsection are subject
6 to removal and replacement by the board of supervisors. The committee
7 shall elect a member who is an aggregate mining operator to serve as
8 chairperson for the first year in which the committee is created. For
9 each year thereafter, the chairperson shall be elected by the members of
10 the committee with a member who is a private citizen and a member who is
11 an aggregate mining operator serving as chairperson in alternate years.
12 The committee is subject to the open meeting requirements of title 38,
13 chapter 3, article 3.1.

14 E. Within ninety days after an aggregate mining operations
15 recommendation committee is established, the committee shall notify all
16 existing aggregate mining operators in the district of the application of
17 this section and title 27, chapter 3, article 6 to the aggregate mining
18 operation. In addition, the committee shall:

19 1. By a majority vote of all members make recommendations to the
20 board of supervisors for aggregate mining zoning districts and
21 administrative regulations as provided in this section. The board of
22 supervisors may adopt or reject the recommendations but may not make any
23 modifications to the recommendations unless the modification is approved
24 by a majority of the members of the recommendation committee.

25 2. Serve as a forum for mediation of disputes between members of
26 the public and aggregate mining owners or operators. If the committee is
27 unable to resolve a dispute, the committee shall transmit the matter to
28 the state mine inspector, with written findings and recommendations, for
29 further action.

30 3. Hear written complaints filed with the state mine inspector
31 regarding alleged material deviations from approved community notices for
32 aggregate mining operations and make written recommendations to the state
33 mine inspector pursuant to section 27-446.

34 F. Any administrative regulations adopted by a board of supervisors
35 pursuant to this section are not effective until the regulations are
36 approved by the state mine inspector. The [STATE MINE](#) inspector may
37 disapprove the administrative regulations adopted by the board of
38 supervisors only if they duplicate, conflict with or are more stringent
39 than applicable federal, state or local laws, rules or regulations. If
40 the [STATE MINE](#) inspector disapproves the administrative regulations, the
41 [STATE MINE](#) inspector must provide written reasons for the disapproval.
42 The [STATE MINE](#) inspector shall not make any modification to the
43 administrative regulations as adopted by the board of supervisors unless
44 the modification is approved by a majority of the members of the board of
45 supervisors.

46 G. A person or entity is subject to this chapter if the use or
47 occupation of land or improvements by the person or entity consists of or

1 includes changing, remanufacturing or treating human sewage or sludge for
2 distribution or resale. These activities are not exempt from this chapter
3 under subsection A, paragraph 2 of this section.

4 H. A county shall not require as a condition for a permit or for
5 any approval, or otherwise cause, an owner or possessor of property to
6 waive the right to continue an existing nonconforming outdoor advertising
7 use or structure without acquiring the use or structure by purchase or
8 condemnation and paying just compensation unless the county, at its
9 option, allows the use or structure to be relocated to a comparable site
10 in the county with the same or a similar zoning classification, or to
11 another site in the county acceptable to both the county and the owner of
12 the use or structure, and the use or structure is relocated to the other
13 site. The county shall pay for relocating the outdoor advertising use or
14 structure, including the cost of removing and constructing the new use or
15 structure that is at least the same size and height. This subsection does
16 not apply to county rezoning of property at the request of the property
17 owner to a more intensive zoning district.

18 I. For the purposes of this section:

19 1. "Aggregate" has the same meaning prescribed in section 27-441.

20 2. "Aggregate mining" has the same meaning prescribed in section
21 27-441.

22 3. "Aggregate mining operation" means property that is owned,
23 operated or managed by the same person for aggregate mining.

24 4. "Operators" means persons who are actively engaged in aggregate
25 mining operations within the zoning district or proposed zoning district
26 and who have given notice to the state mine inspector pursuant to section
27 27-303.

28 [5. "SMALL MODULAR REACTOR" MEANS A GENERATION III+ OR GENERATION
29 IV NUCLEAR GENERATING UNIT WITH A NAMEPLATE RATING OF NOT MORE THAN THREE
30 HUNDRED MEGAWATTS.]

31 Sec. 2. Section 40-360, Arizona Revised Statutes, is amended to
32 read:

33 40-360. Definitions

34 In this article, unless the context otherwise requires:

35 1. "Area of jurisdiction" means the state, a county or an
36 incorporated city or town that exercises concurrent or exclusive
37 jurisdiction over a geographical area.

38 2. "Certificate of environmental compatibility" means the
39 certificate that is required by this article and that evidences the
40 approval by the state of the sites for a plant or transmission line, or
41 both.

42 3. "Commission" means the corporation commission.

43 4. "Committee" means the power plant and transmission line siting
44 committee.

45 5. "Current Arizona electric transmission system" means the
46 existing electric transmission system serving this state and all

1 transmission lines on file with the commission as of January 31 of the
2 previous year.

3 6. "Facilities" means a plant or transmission line, or both.

4 7. "Member" means the state official named herein, the employee
5 designee thereof from the department, agency or governing body of such
6 state official member and the public members designated herein.

7 8. "Person" means any state or agency or political subdivision
8 thereof, or any individual, partnership, joint venture, corporation, city
9 or county, whether located within or without this state, or any
10 combination of such entities.

11 9. "Plant" means each separate thermal OR NONTHERMAL electric,
12 nuclear or hydroelectric generating unit OR A SMALL MODULAR REACTOR with a
13 nameplate rating of ~~one~~ TWO hundred megawatts or more for which
14 expenditures or financial commitments for land acquisition, materials,
15 construction or engineering exceeding \$50,000 have not been made before
16 August 13, 1971.

17 10. "Transmission line":

18 (a) Means five or more new structures that span more than one mile
19 in length as measured from the first structure outside of the substation,
20 switchyard or generating site to which the line connects to the fifth
21 structure and that are erected above ground and support one or more
22 conductors designed for the transmission of electric energy at nominal
23 voltages of one hundred fifteen thousand volts or more and all new
24 switchyards to be used therewith and related thereto for which
25 expenditures or financial commitments for land acquisition, materials,
26 construction or engineering exceeding \$50,000 have not been made before
27 August 13, 1971. ~~Transmission line~~

28 (b) Does not include structures located on the substation,
29 switchyard or generating site to which the line connects.

30 11. "Utility" means any person engaged in the generation or
31 transmission of electric energy.

32 Sec. 3. Section 40-360.03, Arizona Revised Statutes, is amended to
33 read:

34 40-360.03. Application for certificate of environmental
35 compatibility before construction of facilities;
36 electronic format; rules; exception

37 A. Except as provided in ~~subsection~~ SUBSECTIONS B AND C of this
38 section, every utility that plans to construct a plant or transmission
39 line, or both, in this state shall first file with the commission an
40 application for a certificate of environmental compatibility. The
41 application shall be in a form prescribed by the commission and shall be
42 accompanied by information with respect to the proposed type of facilities
43 and description of the site, including the areas of jurisdiction affected
44 and the estimated cost of the proposed facilities and site. The
45 application shall also be accompanied by a receipt that evidences payment
46 of the appropriate fee required by section 40-360.09. The commission
47 shall promptly refer the application and accompanying information to the

1 chairman of the committee for the committee's review and decision. The
2 application and accompanying information may be submitted to the
3 commission in an electronic format. The commission may adopt rules to
4 accept electronic filings under this section and to ensure that proper
5 notice is provided electronically to interested parties.

6 B. A utility may replace a conductor or wire on a transmission line
7 or may replace an existing transmission line structure or structures with
8 a new transmission line structure or structures without seeking a new
9 certificate of environmental compatibility and without holding a hearing
10 under this article if the replacement is on a transmission line that
11 previously received a certificate of environmental compatibility or that
12 was in use or authorized before August 13, 1971. All replacement
13 conductors or structures shall comply with the terms and conditions of the
14 applicable existing certificate of environmental compatibility.

15 C. A UTILITY, AFTER PROVIDING THIRTY DAYS' WRITTEN NOTICE TO THE
16 COMMISSION, MAY REPLACE AN EXISTING THERMAL ELECTRIC GENERATING UNIT WITH
17 A REPLACEMENT SMALL MODULAR REACTOR OR CONSTRUCT A NEW SMALL MODULAR
18 REACTOR WITHOUT SEEKING A NEW CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY
19 AND WITHOUT HOLDING A HEARING UNDER THIS ARTICLE IF THE NEW OR REPLACEMENT
20 SMALL MODULAR REACTOR IS LOCATED ON OR IMMEDIATELY ADJACENT TO THE SITE OF
21 A PLANT THAT PREVIOUSLY RECEIVED A CERTIFICATE OF ENVIRONMENTAL
22 COMPATIBILITY OR THAT WAS IN USE OR AUTHORIZED BEFORE AUGUST 13, 1971.
23 [FOR THE PURPOSES OF THIS SUBSECTION, "SMALL MODULAR REACTOR" MEANS A
24 GENERATION III+ OR GENERATION IV NUCLEAR GENERATING UNIT WITH A NAMEPLATE
25 RATING OF NOT MORE THAN THREE HUNDRED MEGAWATTS.]

26 Sec. 4. Section 40-360.07, Arizona Revised Statutes, is amended to
27 read:

28 40-360.07. Compliance by utility; commission order

29 A. ~~NO~~ EXCEPT AS PROVIDED IN SECTION 40-360.14, SUBSECTIONS B AND C,
30 A utility may NOT construct a plant or transmission line within this state
31 until it has received a certificate of environmental compatibility from
32 the committee with respect to the proposed site, affirmed and approved by
33 an order of the commission which shall be issued not less than thirty days
34 nor more than sixty days after the certificate is issued by the committee,
35 except that within fifteen days after the committee has rendered its
36 written decision any party to a certification proceeding may request a
37 review of the committee's decision by the commission.

38 B. The grounds for review shall be stated in a written notice filed
39 with the commission with a copy ~~thereof~~ OF THE NOTICE served on the
40 chairman of the committee. The committee shall transmit to the commission
41 the complete record, including a certified transcript, and the review
42 shall be conducted on the basis of the record. The commission ~~may~~, at the
43 request of any party, MAY require written briefs or oral argument and
44 shall within sixty days ~~from~~ AFTER the date the notice is filed either
45 confirm, deny or modify any certificate granted by the committee, or ~~in~~
46 ~~the event~~ IF the committee refused to grant a certificate, the commission
47 may issue a certificate to the applicant. In arriving at its decision,

1 the commission shall comply with ~~the provisions of~~ section 40-360.06 and
2 shall balance, in the broad public interest, the need for an adequate,
3 economical and reliable supply of electric power with the desire to
4 minimize the effect ~~thereof~~ on the environment and ecology of this state.

5 C. The committee or any party to a decision by the commission
6 pursuant to subsection B of this section may request the commission to
7 reconsider its decision within thirty days after the decision is issued.
8 A request for reconsideration made pursuant to this subsection shall set
9 forth the grounds ~~upon~~ ON which it is based and state the manner in which
10 the party believes the commission unreasonably or unlawfully applied or
11 failed to apply the criteria set forth in section 40-360.06. The decision
12 of the commission is final with respect to all issues, subject only to
13 judicial review as provided by law in the event of an appeal by a person
14 having a legal right or interest that will be injuriously affected by the
15 decision.

16 Sec. 5. Title 40, chapter 2, article 6.2, Arizona Revised Statutes,
17 is amended by adding section 40-360.14, to read:

18 40-360.14. Exemption; modular reactors colocated with large
19 industrial energy user; rules; applicability;
20 definition

21 A. NOTWITHSTANDING SECTIONS 40-360.03 AND 40-360.07, A UTILITY,
22 AFTER PROVIDING THIRTY DAYS' WRITTEN NOTICE TO THE COMMISSION, MAY
23 CONSTRUCT A NEW SMALL MODULAR REACTOR IN THIS STATE WITHOUT FILING AN
24 APPLICATION FOR OR RECEIVING A CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY
25 IF THE NEW SMALL MODULAR REACTOR IS COLOCATED WITH ~~[A LARGE INDUSTRIAL~~
26 ~~ENERGY USER]~~ [AN EXTRA HIGH LOAD FACTOR CUSTOMER AS DEFINED BY THE
27 COMMISSION].

28 B. A NEW SMALL MODULAR REACTOR THAT IS CONSTRUCTED PURSUANT TO THIS
29 SECTION SHALL COMPLY WITH ALL APPLICABLE FEDERAL, STATE AND LOCAL LAWS AND
30 REQUIREMENTS.

31 ~~[C. THE COMMISSION SHALL ADOPT RULES TO IMPLEMENT THIS SECTION,~~
32 ~~WHICH SHALL INCLUDE THE COMMISSION'S DEFINITION FOR EACH OF THE FOLLOWING~~
33 ~~TERMS:~~

34 ~~1. COLOCATED WITH. THE COMMISSION'S DEFINITION SHALL SPECIFY ONE~~
35 ~~OR BOTH OF THE FOLLOWING:~~

36 ~~(a) THE DISTANCE IN FEET OR PARCELS BETWEEN THE SITE OF A LARGE~~
37 ~~INDUSTRIAL ENERGY USER AND THE SITE OF A SMALL MODULAR REACTOR.~~

38 ~~(b) THE QUALITY OR NATURE OF THE ELECTRICAL INTERCONNECTION BETWEEN~~
39 ~~THE LARGE INDUSTRIAL ENERGY USER AND THE SMALL MODULAR REACTOR.~~

40 ~~2. LARGE INDUSTRIAL ENERGY USER. THE COMMISSION'S DEFINITION:~~

41 ~~(a) SHALL SPECIFY THE PEAK OR AVERAGE ANNUAL OR MONTHLY ENERGY~~
42 ~~DEMAND OF THE USER THAT IS MEASURED IN MEGAWATTS OR MEGAWATT HOURS.~~

43 ~~(b) MAY NOT DISCRIMINATE BETWEEN DIFFERENT:~~

44 ~~(i) INDUSTRIES, SECTORS OR END USERS, THE OWNERS OR OPERATORS OF~~
45 ~~THE END USERS OR THE PROPOSED LOCATIONS OF END USERS.~~

46 ~~(ii) END USERS IN ANY OTHER CAPACITY BEYOND THE USE OF ENERGY~~
47 ~~DEMAND AND OTHER ELECTRICAL-RELATED OPERATING NEEDS OR CHARACTERISTICS.~~

1 ~~S. SMALL MODULAR REACTOR. THE COMMISSION'S DEFINITION:~~

2 ~~(a) SHALL ESTABLISH A MAXIMUM ELIGIBLE NAMEPLATE RATING FOR EACH~~
3 ~~SMALL MODULAR REACTOR. FOR THE PURPOSES OF THIS SUBDIVISION, THE~~
4 ~~COMMISSION SHALL TREAT EACH SEPARATE GENERATING UNIT AND THE NAMEPLATE~~
5 ~~RATING ASSOCIATED WITH EACH SEPARATE GENERATING UNIT AS A SEPARATE SMALL~~
6 ~~MODULAR REACTOR, CONSISTENT WITH THE DEFINITION OF PLANT AS DEFINED IN~~
7 ~~SECTION 40-360. THE MAXIMUM ELIGIBLE NAMEPLATE RATING THE COMMISSION~~
8 ~~ESTABLISHES PURSUANT TO THIS SUBDIVISION MAY NOT BE LESS THAN TWO HUNDRED~~
9 ~~MEGAWATTS.~~

10 ~~(b) MAY DISCRIMINATE BETWEEN DIFFERENT REACTOR TYPES OR~~
11 ~~CLASSIFICATIONS OR REACTORS THAT INCLUDE OR ARE OTHERWISE MANUFACTURED~~
12 ~~WITH CERTAIN MINIMUM BUILT-IN SAFETY FEATURES OR REDUNDANCIES, IF SUCH~~
13 ~~DISCRIMINATION IS REASONABLE AND CONSISTENT WITH THE TYPES OR~~
14 ~~CLASSIFICATIONS THAT ARE ADOPTED OR RECOGNIZED BY THE UNITED STATES~~
15 ~~NUCLEAR REGULATORY COMMISSION.~~

16 ~~[D. THE COMMISSION MAY ADOPT DEFINITIONS FOR ANY OTHER TERMS THE~~
17 ~~COMMISSION DEEMS REASONABLE OR NECESSARY TO CARRY OUT THIS SECTION.]~~

18 ~~[E.] [C.] THIS SECTION APPLIES ONLY IN A COUNTY WITH A POPULATION~~
19 ~~OF LESS THAN FIVE HUNDRED THOUSAND PERSONS.~~

20 ~~[D. FOR THE PURPOSES OF THIS SECTION, "SMALL MODULAR REACTOR" MEANS~~
21 ~~A GENERATION III+ OR GENERATION IV NUCLEAR GENERATING UNIT WITH A~~
22 ~~NAMEPLATE RATING OF NOT MORE THAN THREE HUNDRED MEGAWATTS.]~~

23 Enroll and engross to conform

24 Amend title to conform

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